

# **Samineni Appaiah vs Samineni Srinivasa Rao on 29 March, 2022**

**Author: P.Sree Sudha**

**Bench: P.Sree Sudha**

HON'BLE SMT. JUSTICE P.SREE SUDHA

SECOND APPEAL No.1189 of 2013

JUDGMENT

This Second Appeal is filed by the defendants in the suit and requested the court to set aside the judgement in A.S. No. 78 of 2011, dated 01.02.2013, reversing the decree of the trial court in O.S. No. 124 of 2005, dated 19.08.2010.

02. The first defendant mainly contended that that appellate court held in deciding plaintiff is entitled for half share and defendants Nos. 2 to 4 are not coparceners and first defendant failed to prove that the schedule property is ancestral or self-acquired without framing an issue. In fact, the ancestral property inherited by son on the death of his father should be treated as separate property and thus plaintiff is not entitling for half share. They also stated that the legal status of defendants Nos. 2 to 4 was decided and held that they were not coparceners. The finding of the first appellate court that plaintiff is coparcener is erroneous and requested to set aside the same.

03. One Samineni Srinivasa Rao filed O.S. No. 124 of 2005 against his father/defendant No. 1 and defendants Nos. 2 to 4 and stated that he is son of defendant No. 1 through Samineni Rajamma and defendants Nos. 2 to 4 are children of defendant No. 1 through Sakku Bai. The marriage of defendant No. 1 was performed with Rajamma in the year 1968 and the plaintiff was born in the year 1970 and his brother was born in the year 1972 and after one year his sister was born. First defendant had extra marital relationship and driven his mother out of the house and while he was 6 or 7 years old, his brother and sister died and defendant No. 1 lived with Sakku Bai for 25 years and the plaint schedule properties are inherited by defendant No. 1 from his father Seethaiah who died in the year 2004 as such he is entitled for 1/2 share in the property as he a coparcener along with defendant No. 1. He issued legal notice to defendant no. 1 and filed suit for partition.

04. Defendants Nos. 2 to 4 remained exparte. Defendant No. 1 filed written statement and contended that his wife Rajamma deserted him and he paid Rs.1750/- towards permanent of alimony and the said settlement deed was executed between them. A division of property took place between him and plaintiff and during such division, plaintiff got 20 gts. of land in item No. 1 of plaint "A" schedule towards his share, but he sold the same to the defendant again for a consideration of Rs.5000/-. Item No. 2 of plaint "A" and "B" schedule properties are self-acquired properties and acquired the same after the desertion of his first wife as already partition took place between him and plaintiff, and thus, the plaintiff is not entitled for any share in the properties.

05. Plaintiff is examined as PW1 and also examined his mother as PW2 and marked Exs.A1 to A6. First defendant is examined as DW1 and other two independence whiteness as DWs 2 and 3 and marked Exs.B1 to B5. The trial court on considering the entire evidence on record, decreed the suit by allotting 1/5 share to the plaintiff in plaint "A" and "B" schedule properties and the claim of mesne profits was dismissed with a direction to file a separate petition under Order 20 Rule 12 C.P.C.

06. Aggrieved by the said order, plaintiff preferred an appeal and contended that the petition schedule properties are ancestral properties as such he is entitled for 1/2 share along with his father and coparceners cannot be equated to the illegitimate children. The appellate court held that defendant No. 1 without giving divorce to Rajamma, married Sakku Bai and even in the full and final settlement of maintenance in a document executed on 19.04.1976 it was not stated that he has given divorce to her as such, the children of defendant No. 1 to Sakku Bai are illegitimate children and as per Section 8 of the Hindu Succession Act, illegitimate son or daughter do not fall under Rules of Succession in Section 8 of the Act. They relied upon citation of the Supreme Court reported in GUR NARAIN DAS V/s. GUR TAHAL DAS<sup>1</sup> held that 'illegitimate children does not acquire right by birth or any interest in the father's estate and thus they cannot demand for partition during the life time of his father but after his death the illegitimate son succeeds as a coparcener to the separate estate of his father along with legitimate son with a right of survivorship but illegitimate son AIR 1952 SC 225 takes only one-half of what he would have taken if he was a legitimate son'. Co-parcenary property recognises legitimate children only as child gets right in the property by birth. He can ask for partition of ancestral property only, but father can give his self acquired property to all children, including illegitimate children. Coparceners are placed in high position than illegitimate children, who are recognized as legitimate children under Section 16 of Hindu Marriage Act, but Section 16 of the Hindu Marriage Act was amended only to remove the stigma attached to the birth of illegitimate children and it is not intended to bring changes in the Hindu Succession Act. Otherwise, they should have amended Section 8 of the Hindu Succession Act and incorporated all illegitimate children including daughters in the place of coparceners and thus modified the order of the trial court and held that the plaintiff and his father/first defendant are entitled for 1/2 share each. Whereas defendant Nos. 2 to 4 are entitled for 1/5 share in the share of his father and accordingly the plaintiff can obtain final decree including mesne profits.

07. Aggrieved by the said order, defendant No. 1 and his children preferred the second appeal but during the pendency of the appeal, defendant No. 1 died. Defendant No. 1 in his written statement clearly stated that there was division of property between himself and the plaintiff and he gave 2 guntas of land in item No. 1 of plaint schedule to the plaintiff, but he sold the same for Rs.5000/- to him. The said previous partition was never disputed by the plaintiff at any point of time. Defendant No. 1 contended that item No. 2 of the plaint "A" and "B" schedule properties are his self- acquired properties and he acquired them after deserting his first wife. The plaintiff contended that his grand father Seethaiah died in the year 2004 and after his death the properties were devolved upon his father and thus as a coparcener, he is entitled for 1/2 share along with his father. The trial court observed if a schedule properties except 2 guntas are self-acquired properties of the defendants he would have filed the revenue records to show that they are in the name of first defendant, but he has not filed any revenue record or any registered document to show that schedule properties are

self-acquired properties as he claimed that the said properties are self-acquired properties, the burden is upon him to discharge the same, but he failed to do so as such, the properties can be treated as joint family properties. It was also held whether legitimate or illegitimate children are having share over the joint family properties and thus decreed the suit by allotting 1/5 share to each of them.

o8. As per Section 16 (1)&(2), the children born from void and voidable marriage shall be legitimate and they will be on par with other legitimate children and be entitled to all rights in the property of their parents. Therefore, such children will have right over the property of their parents whether they are self-acquired or ancestral.

In 1995 (1) ALD 456, the Andhra Pradesh High Court held that the ancestral property inherited by the son on the death of his father shall be treated as his separate property and a son born to him is not entitled to share by birth.

o9. In the case on hand, the plaintiff is son of first wife and defendants Nos. 2 to 4 are the children of second wife of defendants No. 1. Plaintiff contended that as he is legitimate child, he should be treated as coparcener and he is entitled for half share. Though appellate court considered the Amendment Section 16 (1) and (2), took an opinion that the said Amendment was introduced only to take away social stigma on the illegitimate children and thus they cannot be treated on par with coparcener. But, as per Section 16 (3) it does not impose any restriction on the property right of illegitimate children except limiting it to the property of their parents and such children will have a right in the property of their parents whether it is self-acquired or ancestral. In this case defendant No. 1 married Rajamma when plaintiff was 6 or 7 years old, she lived separately along with plaintiff. Later defendant No. 1 married Sakku Bai and had defendants No. 2 to 4 and they lived together for 25 years considerably long period and during the life time of his father defendant No. 1, plaintiff sought for partition and also filed suit claiming half share, but the trial court considered the properties as joint family properties held that illegitimate children are also entitled for partition on par with legitimate children and allotted 1/5 share each. But, the first appellate court erred in interpreting the law wrongly and also Amendment to Section 16 (3) in a proper perspective and held that plaintiff and defendant No. 1 are entitled for half share and defendant No. 2 to 4 are entitled for 1/5 share in the share of their father.

10. Admittedly even the illegitimate children are entitled for property of their parents whether it is self-acquired or ancestral. Though plaintiff contended that it is ancestral property of his grand father Seethaiah he has not filed any documents to substantiate his version. Whereas defendant No. 1 stated already partition took place between him and his son i.e., plaintiff and he gave Ac. 2.2 gts of land, but plaintiff sold the same again to him for Rs.5000/-. That was never denied by the plaintiff at any point of time. He further stated that the other properties are self-acquired properties. But, the trial court concluded that they are joint family properties. But, as per Amendment under Section 16 (3) whether the properties of parents are ancestral or self-acquired, the illegitimate children who are treated as legitimate under Section 16 (3) are entitled for right in the share of the property of their parents on par with legitimate children. Therefore, the order of the first appellate court is liable to be set aside, confirming the judgment of the trial court in O.S. No. 124 of 2005, dated 19.08.2010.

11. In the result, plaintiff and defendants Nos. 2 to 4 are entitled for equal share in the property of their father i.e. 1/4th share to each of them.

12. Pending miscellaneous petitions, if any, shall also stand dismissed in the light of this final judgment.

\_\_\_\_\_ P.SREE SUDHA, J.

29th MARCH, 2022.

Pssk/PGS